# Master Services Agreement

This Master Services Agreement (this "**Agreement**") is entered into as of February 1, 2026 (the "**Effective Date**"), by and between **Acme Software, Inc.**, a Delaware corporation with offices at 100 Market Street, San Francisco, California ("**Acme**" or "**Vendor**"), and **Northstar Logistics LLC**, a Delaware limited liability company with offices at 500 Industrial Parkway, Chicago, Illinois ("**Northstar**" or "**Customer**"). Acme and Northstar are each a "**Party**" and collectively the "**Parties**."

## 1. Engagement; Statements of Work

Customer engages Vendor to perform the professional services described in one or more written Statements of Work ("**SOWs**") that the Parties execute under this Agreement. Each SOW shall reference this Agreement and incorporate its terms; in the event of a conflict between this Agreement and an SOW, this Agreement governs unless the SOW expressly amends a specific provision of this Agreement.

The services performed under each SOW (collectively, the "**Services**") may include consulting, implementation, customization, training, integration, and any other work product or deliverables ("**Deliverables**") described therein. Each SOW shall include, at minimum: scope, schedule, fees, acceptance criteria (if any), and a designated point of contact for each Party.

## 2. Payment Terms

Customer shall pay Vendor the fees set forth in each SOW. Unless otherwise specified in an SOW, **invoices are payable net thirty (30) days** from the invoice date. Undisputed amounts not paid when due shall accrue interest at the lesser of one and one-half percent (1.5%) per month or the maximum rate permitted by law, calculated from the due date until paid in full.

Customer may withhold payment of any amount disputed in good faith, provided Customer gives Vendor written notice of the dispute within ten (10) business days of receiving the invoice, identifies the specific line items in dispute, and pays all undisputed amounts. The Parties shall work in good faith to resolve any payment dispute within thirty (30) days.

Vendor's fees are exclusive of taxes; Customer is responsible for all applicable sales, use, value-added, and similar taxes, other than taxes based on Vendor's net income.

## 3. Intellectual Property; Ownership of Deliverables

All Deliverables created by Vendor specifically for Customer under an SOW shall be deemed "**works made for hire**" under U.S. copyright law to the extent permitted. To the extent any Deliverable does not qualify as a work made for hire, Vendor hereby assigns to Customer all right, title, and interest in and to such Deliverables, including all intellectual property rights therein.

The foregoing assignment does **not** include Vendor's pre-existing intellectual property, generally applicable tools, methodologies, know-how, or templates that Vendor brings to the engagement ("**Vendor Background IP**"). Vendor retains all right, title, and interest in Vendor Background IP and hereby grants Customer a perpetual, royalty-free, non-exclusive, worldwide license to use any Vendor Background IP incorporated into a Deliverable solely as part of the Deliverable and for Customer's internal business purposes.

Customer's pre-existing intellectual property remains Customer's exclusive property; Customer grants Vendor a limited, non-exclusive license to use Customer's intellectual property solely as necessary to perform the Services.

## 4. Warranties

Vendor represents and warrants that: (a) the Services will be performed in a professional and workmanlike manner consistent with prevailing industry standards; (b) the Deliverables will materially conform to the specifications set forth in the applicable SOW; (c) the Deliverables will not, to Vendor's knowledge, infringe any third-party intellectual property rights; and (d) Vendor has full power and authority to enter into this Agreement and to perform its obligations hereunder.

**THE WARRANTIES SET FORTH IN THIS SECTION 4 ARE IN LIEU OF ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT**, except that nothing in this Agreement disclaims the implied warranties of merchantability and fitness for a particular purpose that apply by operation of law in the relevant jurisdiction and cannot be effectively disclaimed.

Customer's exclusive remedy and Vendor's sole obligation for any breach of the warranties in this Section is, at Vendor's option, re-performance of the non-conforming Services or refund of the fees paid for the specific non-conforming Services, provided Customer notifies Vendor in writing of the alleged breach within thirty (30) days of discovery.

## 5. Indemnification

Each Party (the "**Indemnifying Party**") shall defend, indemnify, and hold harmless the other Party (the "**Indemnified Party**") from and against any third-party claims, damages, liabilities, costs, and reasonable attorneys' fees ("**Losses**") arising out of: (a) the

Indemnifying Party's gross negligence or willful misconduct; (b) the Indemnifying Party's breach of its representations and warranties under this Agreement; or (c) bodily injury, death, or damage to tangible property caused by the Indemnifying Party's employees or agents.

In addition, Vendor shall indemnify Customer against any third-party claim that a Deliverable infringes such third party's intellectual property rights, provided that the indemnity excludes claims arising from Customer's modifications to a Deliverable or Customer's combination of a Deliverable with materials not supplied by Vendor.

The Indemnified Party shall promptly notify the Indemnifying Party of any claim, tender sole control of the defense to the Indemnifying Party (with the Indemnified Party's reasonable cooperation), and not settle any claim without the Indemnifying Party's prior written consent (not to be unreasonably withheld).

## 6. Limitation of Liability

EXCEPT FOR (A) THE PARTIES' INDEMNIFICATION OBLIGATIONS UNDER SECTION 5, (B) AMOUNTS OWED FOR SERVICES RENDERED, (C) A PARTY'S BREACH OF CONFIDENTIALITY OBLIGATIONS, AND (D) A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, **EACH PARTY'S AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CUSTOMER TO VENDOR UNDER THE APPLICABLE SOW IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.**

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INCIDENTAL, INDIRECT, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS OR LOST BUSINESS OPPORTUNITIES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

## 7. Term and Termination

This Agreement commences on the Effective Date and continues until terminated. Either Party may terminate this Agreement: (a) **for convenience upon sixty (60) days' written notice to the other Party**; or (b) for cause if the other Party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receiving written notice describing the breach in reasonable detail.

Termination of this Agreement does not affect any SOWs in progress; the Parties shall in good faith determine whether to terminate, suspend, or complete each SOW in accordance with its terms. Sections 3, 4 (limited to surviving warranties), 5, 6, 8, and 11 survive termination.

## 8. Confidentiality

Each Party agrees to hold the other Party's confidential information in confidence using a standard of care no less protective than that used to protect its own confidential information of similar nature, and in no event less than reasonable care. Confidential information includes business, technical, financial, customer, and personnel information disclosed by one Party to the other in connection with this Agreement. The confidentiality obligation survives termination for three (3) years (indefinitely for trade secrets).

## 9. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the State of Delaware, without regard to its conflict-of-laws principles. Any dispute arising out of or relating to this Agreement shall be resolved exclusively in the state or federal courts located in Wilmington, Delaware, and each Party irrevocably submits to the exclusive jurisdiction of such courts.

## 10. Miscellaneous

**Entire Agreement.** This Agreement, together with all SOWs, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior negotiations and agreements.

**Amendment.** This Agreement may be amended only by a writing signed by authorized representatives of both Parties.

**Assignment.** Neither Party may assign this Agreement without the other Party's prior written consent, except to an affiliate or to a successor in interest in connection with a merger, acquisition, or sale of substantially all assets.

**Independent Contractor.** Vendor is an independent contractor; nothing in this Agreement creates a partnership, joint venture, or employment relationship.

**IN WITNESS WHEREOF**, the Parties have executed this Agreement as of the Effective Date.

| **ACME SOFTWARE, INC.** | **NORTHSTAR LOGISTICS LLC** |
|---|---|
| By: _________ | By: _________ |
| Name: Jennifer Walsh | Name: Robert Chen |
| Title: Chief Operating Officer | Title: VP Operations |